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NON JUDICIAL

₹ 5000

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GOVERNMENT OF KERALA
e-Stamp

e-Stamp Serial Number : 202526000002904699

Verification Code : 799711804V

Govt. Reference No.(GRN)

: KL020400442202526E

Purpose

: Partnership - instrument of partnership deed

Amount of Stamp Paper Purchased in Numeral

: ₹ 5000

Amount of Stamp Paper Purchased in Words

: Rupees Five Thousand

Stamp Paper Purchased on

: 04/08/2025 12:37:32

First Party Name

: M C Wilson

First Party Address

: Moonthungal House Mattancherry PO Ernakulam
682002

Second Party Name

: Shibu R V

Second Party Address

: R V Sadanam Pananinna Kanjiramkulam PO
Thiruvananthapuram

Vendor Code & Name

: 02020030 - OMANA K

Treasury Code & Name

: 0202 - Sub Treasury Neyyattinkara

Please write or type below this line

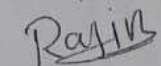
DEED OF PARTNERSHIP

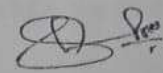
THIS DEED OF PARTNERSHIP is executed on this the 4th day of August, 2025

BETWEEN

1. Mr. M.C.Wilson S/o Mr. M A Cyril R/o 14/1242 A, Moonthungal House, M.A.Cyril Lane, Chullickal, Mattancherry.P.O, Ernakulam, Kerala - 682002 (herein after referred to as FIRST PARTNER)
2. Mrs. Raji Baburaj.P.B D/o Mr. Bhaskaran R/o Balaji Bhavan, Cheranalloor Ferry Road, MA Bank Pady, Cheranalloor P O, Ernakulam, Kerala - 682034 (hereinafter referred to as SECOND PARTNER).


M.C.WILSON


RAJI BABURAJ.P.B

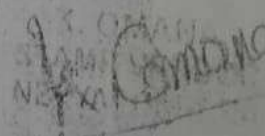

SHIBU.R.V



This can be verified by

https://www.estamp.treasury.kerala.gov.in/index.php/estamp_search using e-Stamp Serial Number and Verification Code.

Info: info@pe.gov.in



19. RESTRICTIVE COVENANTS: - No partner shall without the consent of the other partner do any of the following acts: -

- a. Engage while he is a partner or he directly or indirectly concerned in any other business other than that of and competing with the business of the firm.
- b. Engage or dismiss agents, clerk or other servants of the firm except by the Managing Partner.
- c. Lend any money or deliver any goods belong to the firm, except the transactions in the ordinary course of business.
- d. Release or compound any debt or claim owing to the firm.
- e. Guarantee any payment or discharge of any such sum or claim.
- f. Execute any deed or stand surety for any other way liable.
- g. Make any payment or acknowledge any liability of the firm.
- h. Transfer his interest in the firm by mortgage or sale.

20. RETIREMENT: - if any partner shall at any time during the subsistence of the partnership be desirous of retiring from it, shall give at least one month notice.

21. DEATH OF PARTNER: - In the event of death of any partner, one of the legal representative of the deceased partner shall become the partner of the firm.

22. INDUCTION OF NEW PARTNER: - The partners by mutual agreement induct new partners in to the firm in accordance with the terms and conditions agreed upon.

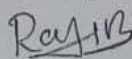
23. AMENDMENTS: - The partners may bring amendment to this by mutual agreement in the form of minutes which shall be deemed to be part and parcel of this deed.

24. ARBITRATION: - All disputes touching the affairs of the partnership firm shall be referred to arbitration in accordance with the provisions of Indian Arbitration Act, 1940 and the award of such arbitrator or arbitrators shall be final and binding on parties.

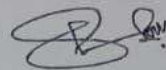
25. MINUTEBOOK: - A minute book shall be maintained by the partners where in shall be recorded the proceedings of the meeting of partners and any clauses of the agreement may be incorporated by means of resolution, amendments or modifications effective from the date of such resolutions.



M.C. WILSON



RAJI BABURAJ.P.B

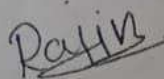


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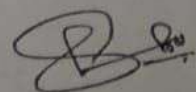
- 12. REMUNERATION OF MANAGING AND WORKING PARTNERS:** - remuneration of Managing and Working Partner shall be paid or credited to their current account at the end of every year according to the 90% of the net book profit at 1:1:1 ratio.
- 13. APPLICABILITY OF INCOME TAX ACT:** - For the purpose of calculation of remuneration payable to partners the book profit of the firm shall be calculated as defined in explanation 3 of section 40(b) of the Income Tax Act, 1961 or any other applicable provisions as may be in force for the Income Tax Assessment of the partnership firm of the relevant account year.
- 14. OPENING AND OPERATION OF BANK ACCOUNTS:** - That the firm shall maintain one or more than one bank account with one or more than one bank of repute and such accounts shall be operated by such Partners as and when decided.
- 15. LOANS/OVERDRAFTS:** - The partners shall raise Loans/ Overdrafts etc. from banks or financial institutions for the purpose of the firm, subject to the terms and conditions by mortgaging/ hypothecating all or some of the assets of the partnership firm as deemed fit by the partners.
- 16. SHARE OF PROFITS AND LOSSES:** - That the shares of the partners in the net profit or loss of the firm after interest on capital and remuneration to partners shall be divided between the partners in 40:20:40 ratio.
- 17. WITHDRAWAL BY PARTNERS:** - That the partners shall not draw any amount from the capital contributed by them except with the prior consent of all the partners but shall be free to draw their respective share of profits if any, which shall be credited to their respective accounts on the taking of annual accounts of business of the firm.
- 18. INVESTMENTS:** - The monies, securities and other valuable items belonging to the firm or such as may come in to in possession and such are not immediately needed for the day today business shall be kept properly invested or in safe custody and no partner shall utilise or expend any money, security, goods or other property or asset of the firm for his own individual benefits.



M.C.WILSON



RAJI BABURAJ.P.B

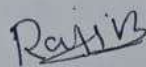


SHIBU.R.V

7. **ACCOUNTS :-** That the firm shall regularly maintain in the ordinary course of business true and correct accounts of all its incomings and out goings and also to all its assets and liabilities in proper books of accounts which shall be ordinarily kept at the firm's place of business and an account shall be taken once in every year as on 31st day of the month of March of the profit and losses of the business carried on by the firm and a balance sheet prepared of the firm's assets and liabilities as on that date. Every partner shall access to the books and right to verify their correctness.
8. **MANAGING PARTNER:** - Third partner Mr. Shibu.R.V, shall be the Managing partner of the firm.
9. **WORKING PARTNER:** - First partner Mr. M.C.Wilson and second partner Mrs. Raji Baburaj.P.B, shall be the working partner of the firm.
10. **DUTIES OF MANAGING PARTNERS:** - The Managing Partners shall have the following duties and powers:
- To make and give receipts, realise and other discharge for the monies payable to the firm and claims and demands of the firm.
 - To enter into contract with individuals, firms, companies, state or central governmental organisations, municipalities, corporations, local authorities and such organisations on behalf of the firm.
 - To claim and collect dues and outstanding on account of partnership.
 - To institute, conduct and defend suits, appeals, revision and all other legal proceedings in all civil, criminal, revenue and various courts, tribunal and before central and state governments and other central and state government authorities to engage layers and appoint agents, to appear before any court or tribunal.
 - To appoint and dismiss staff, employees, agents, workmen, servants, to fix and pay remuneration and salary as he deems fit, to punish and exercise disciplinary control over them and prescribe them and allot their duties.
 - To draw, make, endorse, transfer, negotiate and discount promissory note, bill of exchange, cheques and other negotiable papers in the names and on account of the partnership.
 - To make purchase on behalf of the partnership.
 - To delegate the powers needed for the general management for the firm to such partners or employees or persons as he deems fit.
 - To do all such acts, matters and things deemed necessary, proper and expedient for carrying on the business of the firm.
11. **DUTIES OF WORKING PARTNERS:** - That the working partners will look after the affairs of the firm jointly and effectively with the Managing Partner for the purpose of the firm.



M.C.WILSON



RAJI BABURAJ.P.B



SHIBU.R.V

3. Mr. Shibu.R.V S/o Mr. Reghu R/o RV Sadhanam, Pananinna, Kanjiramkula P.O, Thiruvananthapuram, Kerala - 695524 (hereinafter referred to as THIRD PARTNER).

WHEREAS the parties above named intend to carry on business in partnership in the name and style of M/s SPARK LEARNINGS vide this Deed of Partnership.

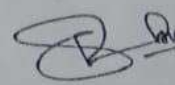
AND WHEREAS the parties hereto have deemed it expedient to reduce into writing and are desirous of recording the terms and conditions governing their relations inter se.

NOW THEREFORE THIS PARTNERSHIP DEED WITNESSETH AS UNDER:-

1. **NAME:** - The name and the style of partnership shall be "M/s SPARK LEARNINGS". The partners shall be entitled to carry on business under any other name and/or names as may be agreed upon mutually from time to time under this group.
2. **PLACE:** - The principal place of business of the firm shall be at 66/1171, Amarakerala Building, 2nd Floor, Kalabhavan Road, Near Town Hall, Ernakulam North.P.O, Ernakulam, Kerala - 682018. The partners may by mutual consent shift the main place or open new branch or branches at any place.
3. **BUSINESS:** - The main business of the partnership firm shall be to set up and run coaching centers, study centers, and online coaching classes to prepare students for competitive examinations and such other business as and when decided by the partners mutually agreed upon.
4. **TERM :-** the term of partnership is **AT WILL**
5. **CAPITAL:** - The capital of the firm for the time being fixed at **Rs.10,00,000/- (Rupees Ten Lakhs Only)** which shall be contributed by first partner and second partner in 7:3 ratio. Provided any additional amount as and when required for the purpose of business shall be contributed or arranged by the partners as above. Also the partners may contribute amount for the purpose of business in addition to the capital contribution as loan as per the terms and conditions agreed upon by the partners.
6. **INTEREST:** - The firm shall pay simple interest at 12% or such lower or higher rate as may be prescribed under section 40(b)(iv) of the Income Tax Act 1961 or any other applicable provision as may be in force of the Income Tax Assessment of the partnership firm for the relevant accounting period per annum to the contribution and profit and losses of the business of the firm shall be arrived at after accounting for the interest so payable as a business expenditure of the firm. In case of loss no interest on capital shall be paid. The partners shall also be at liberty to increase or reduce the rate of interest from time to time.


M.C. WILSON

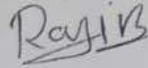

RAJI BABURAJ.P.B


SHIBU.R.V

26. RESIDUARY CLAUSE: - That in all other matter the provision of Indian Partnership Act, 1932 shall apply.



M.C. WILSON



RAJI BABURAJ.P.B



SHIBU.R.V

WITNESSES

1. Bayu Bhasker 

2. Baburoj P.B. Balan. B. 